



COURSE NUMBER

FHWA-NHI-310108

COURSE TITLE

Federal Lands 101

During these times of economic expansion and growth, there are dramatic workforce changes taking place. With the passage of TEA-21, the program for Federal Lands Highway (FLH) nearly doubled and there is the prospect that it will again increase under pending transportation reauthorization. Due to this change, coupled with the increasing demand by our partners and customers for more technical assistance, FLH needs to develop the knowledge of their new/mid-career hires in the area of FLH operations and regulations.

Therefore, the overall course goal is to provide FLH employees with an overview of how FLH operates in order to administer programs, deliver projects, develop and transfer technology, and provide external training.

OUTCOMES

Upon completion of the course, participants will be able to:

- Identify the role and authorities of FLH within the FHWA and its interactions with Federal-aid divisions
- Describe unique aspects of FLH customers and programs
- Describe how FLH delivers projects
- Describe how FLH conducts business, including processes and resources

TARGET AUDIENCE

New hires to FLH in all positions and grades and Federal-aid (particularly new employees) and Federal Lands Management Agency employees upon request.

TRAINING LEVEL: Basic

FEE: 2015: \$400 Per Person; 2016: N/A

LENGTH: 2 DAYS (CEU: 1.2 UNITS)

CLASS SIZE: MINIMUM: 20; MAXIMUM: 30

NHI Customer Service: (877) 558-6873 • nhicustomerservice@dot.gov

FILED

APR 21 2017

MOLLY C. DWYER, CLERK
U.S. COURT OF APPEALS

NOT FOR PUBLICATION

UNITED STATES COURT OF APPEALS

FOR THE NINTH CIRCUIT

AMTRUST BANK, FKA Ohio Savings
Bank; et al.,

Plaintiffs-Appellees,

v.

REX H. LEWIS,

Defendant-Appellant,

and

CORRALES PETERS, LLC; et al.,

Defendants.

No. 15-16754

D.C. No.

2:10-cv-00439-JCM-VCF

MEMORANDUM*

Appeal from the United States District Court
for the District of Nevada
James C. Mahan, District Judge, Presiding

Submitted April 19, 2017**
San Francisco, California

* This disposition is not appropriate for publication and is not precedent except as provided by Ninth Circuit Rule 36-3.

** The panel unanimously concludes this case is suitable for decision without oral argument. *See* Fed. R. App. P. 34(a)(2).

Before: PAEZ and IKUTA, Circuit Judges, and BOLTON,^{***} District Judge.

Rex Lewis appeals the district court's order (1) denying his motion for relief from judgment pursuant to Rule 60 of the Federal Rules of Civil Procedure, (2) denying his motion to modify an asset-freezing injunction to allow him to withdraw up to \$15,000 a month from his IRA, (3) ruling that his residence was subject to execution under Rule 37 of the Federal Rules of Civil Procedure as a sanction for violating a post-judgment discovery order, and (4) striking Lewis's reply memorandum in support of objections to a magistrate judge's report and recommendation. We have jurisdiction under 28 U.S.C. §§ 1291 and 1292(a)(1) because the district court's post-judgment orders either are final with the respect to the issues raised or deny modification of an injunction. *See Nat. Res. Def. Council, Inc. v. Sw. Marine Inc.*, 242 F.3d 1163, 1166 (9th Cir. 2001). We affirm.

The district court did not abuse its discretion in denying Lewis's motion for relief from judgment under Rule 60(b) of the Federal Rules of Civil Procedure on the ground that the motion was untimely. A Rule 60(b) motion "must be made within a reasonable time." Fed. R. Civ. P. 60(c)(1); *see Ashford v. Steuart*, 657 F.2d 1053, 1055 (9th Cir. 1981) (per curiam). The district court appropriately gave

^{***} The Honorable Susan R. Bolton, United States District Judge for the District of Arizona, sitting by designation.

the interest in finality “great weight” because the time to appeal had passed, and the district court did not clearly err in finding that neither the “reason for delay” nor “the practical ability of the litigant to learn earlier of the grounds relied upon” weighed in favor of reasonableness. *Ashford*, 657 F.2d at 1055. Further, the record supports the finding that Lewis could have made the arguments advanced in his motion for relief from judgment as early as the summary judgment stage, which occurred years before he filed his Rule 60(b) motion. As such, his motion is better construed as a motion for reconsideration under Rule 59 of the Federal Rules of Civil Procedure, which was likewise properly denied as untimely and as presenting a merits argument that Lewis could have raised earlier in the litigation. Fed. R. Civ. P. 59(e); *Kona Enters., Inc. v. Estate of Bishop*, 229 F.3d 877, 890 (9th Cir. 2000).

In the alternative, the district court did not abuse its discretion in denying relief under Rule 60(b) on the merits. Because Lewis could have made his arguments to the district court before entry of final judgment, he did not establish “mistake, inadvertence, surprise, or excusable neglect” necessary for relief under Rule 60(b)(1), and he did not “establish the existence of extraordinary circumstances which prevented or rendered him unable to prosecute an appeal” necessary for relief under Rule 60(b)(6). *Mackey v. Hoffman*, 682 F.3d 1247, 1251

(9th Cir. 2012) (quoting *Martella v. Marine Cooks & Stewards Union*, 448 F.2d 729, 730 (9th Cir. 1971) (per curiam)).

The district court also did not abuse its discretion in denying Lewis's motion for relief from judgment under Rule 60(d). Because the record reflects that Lewis could have brought the pertinent contract language to the court's attention at the time of summary judgment, the appellees' failure to do so was not fraud on the court. See *Lavender v. Prober (In re Lavender)*, 180 F.3d 1114, 1119 (9th Cir. 1999).

The district court did not abuse its discretion in denying Lewis's motion to modify an asset-freezing injunction that restricts him from transferring assets of greater than \$5,000 in value without court approval. The district court reasonably took into account evidence that Lewis was directing his attorneys to evade post-judgment discovery in a manner that threatened to render the district court's judgment ineffectual. Cf. *Commodity Futures Trading Comm'n v. Noble Metals Int'l, Inc.*, 67 F.3d 766, 775 (9th Cir. 1995) (noting that district courts should exercise their discretion in light of whether "wrongdoing" has been shown). Section 21.090(1)(r)(1) of the Nevada Revised Statutes does not foreclose the district court's ruling, as the injunction does not declare Lewis's IRA account subject to execution or require Lewis to contribute exempt assets to his judgment

debt.¹ The unmodified injunction leaves Lewis free to make transfers of less than \$5,000 without court supervision and therefore does not “fail[] to afford [Lewis] any access to funds to pay an attorney.” *Fed. Sav. & Loan Ins. Corp. v. Ferm*, 909 F.2d 372, 375 (9th Cir. 1990).

The district court did not abuse its discretion in imposing sanctions under Rule 37(b)(2)(A)(i) and (ii) that prevented Lewis from introducing evidence to establish that his residence met the statutory criteria for exemption from execution or that the residence was contractually protected from execution. The district court did not clearly err in finding that Lewis willfully violated a prior discovery order by refusing to make necessary disclosures regarding his interest in the residence, or in finding that Lewis repeatedly evaded and hindered the post-judgment discovery process in order to frustrate the judgment creditors’ execution. The district court could reasonably anticipate continued deceptive conduct, and “[i]t is appropriate to reject lesser sanctions where the court anticipates continued deceptive misconduct.” *Conn. Gen. Life Ins. Co. v. New Images of Beverly Hills*, 482 F.3d 1091, 1097 (9th Cir. 2007). Lewis’s deception and evasion created a high risk of

¹ To the extent Lewis challenges the underlying asset-freezing injunction as inconsistent with section 21.090(1)(r)(1), we reject that argument as well. *See Alto v. Black*, 738 F.3d 1111, 1120 (9th Cir. 2013) (“[A] subsequent challenge to the injunctive relief must rest on grounds that could not have been raised before.”).

prejudice to the appellees, and under these circumstances it was not an abuse of discretion to treat these factors as dispositive. *See Adriana Int'l Corp. v. Thoeren*, 913 F.2d 1406, 1412 (9th Cir. 1990).

Finally, the district court did not abuse its discretion by exercising its inherent power to strike Lewis's reply memorandum in further support of his objections to the magistrate judge's report and recommendation. *See Ready Transp., Inc. v. AAR Mfg., Inc.*, 627 F.3d 402, 404 (9th Cir. 2010). "Broad deference is given to a district court's interpretation of its local rules." *Bias v. Moynihan*, 508 F.3d 1212, 1223 (9th Cir. 2007). The district court reasonably interpreted its local rules to prohibit the filing of reply memoranda without leave of the court. *See D. Nev. L.R. IB 3-2(a)* (2011) (providing only for objections and oppositions to objections). Because Lewis did not request and receive leave to file the memorandum, the district court did not err in finding that the memorandum had been filed in contravention of the local rules, thereby warranting that it be struck from the docket.

Five Springs LLC's motion to become amicus curiae (Doc. 9) is GRANTED, and appellees' motion to strike (Doc. 30) is DENIED.

AFFIRMED.

	Percent
Others (Including Non-Profit Organizations) with Credit Available Elsewhere	7.125
For Economic Injury Businesses and Small Agricultural Cooperatives without Credit Available Elsewhere ...	4.000

The number assigned to this disaster for physical damage is 306411 and for economic injury the number is 975800.

(Catalog of Federal Domestic Assistance Program Nos. 59002 and 59008)

Dated: March 5, 1998.

Bernard Kulik,

Associate Administrator for Disaster Assistance.

[FR Doc. 98-6483 Filed 3-12-98; 8:45 am]

BILLING CODE 8025-01-P

SMALL BUSINESS ADMINISTRATION

[Declaration of Disaster #3046; Amendment #2]

State of New York

In accordance with information received from the Federal Emergency Management Agency dated February 27, 1998, the above-numbered Declaration is hereby amended to extend the deadline for filing applications for physical damage as a direct result of this disaster to April 10, 1998. The deadline for filing applications for economic injury remains October 13, 1998.

(Catalog of Federal Domestic Assistance Program Nos. 59002 and 59008)

Dated: March 5, 1998.

Bernard Kulik,

Associate Administrator for Disaster Assistance.

[FR Doc. 98-6482 Filed 3-12-98; 8:45 am]

BILLING CODE 8025-01-M

SMALL BUSINESS ADMINISTRATION

[Declaration of Disaster #3049; Amendment 4]

State of Tennessee

In accordance with a notice from the Federal Emergency Management Agency dated February 23, 1998, the above-numbered Declaration is hereby amended to include Washington County in the State of Tennessee as a disaster area due to damages caused by severe storms and flooding beginning on January 6, 1998 and continuing through February 12, 1998.

In addition, applications for economic injury loans from small businesses located in the contiguous county of Hawkins, Tennessee may be filed until

the specified date at the previously designated location. Any counties contiguous to the above-named primary county and not listed herein have been previously declared.

All other information remains the same, i.e., the deadline for filing applications for physical damage is March 13, 1998 and for economic injury the termination date is October 13, 1998.

(Catalog of Federal Domestic Assistance Program Nos. 59002 and 59008)

Dated: February 26, 1998.

Bernard Kulik,

Associate Administrator for Disaster Assistance.

[FR Doc. 98-6485 Filed 3-12-98; 8:45 am]

BILLING CODE 8025-01-M

SMALL BUSINESS ADMINISTRATION

National Small Business Development Center Advisory Board; Public Meeting

The U.S. Small Business Administration National Small Business Development Center Advisory Board will hold a public meeting on Monday, May 4, 1998, from 9:00 am to 5:00 pm, at the San Antonio Small Business Development Center, The University of Texas at San Antonio, to discuss such matters as may be presented by members, staff of the U.S. Small Business Administration, or others present.

For further information, please write or call Jorge F. Cardona, U.S. Small Business Administration, 409 Third Street, SW, Fourth Floor, Washington, DC, 20416, telephone number (202) 205-7303.

Eugene Carlson,

Associate Administrator, Communications and Public Liaison.

[FR Doc. 98-6481 Filed 3-12-98; 8:45 am]

BILLING CODE 8025-01-M

SMALL BUSINESS ADMINISTRATION

Region I—Boston District Advisory Council; Public Meeting

The U.S. Small Business Administration Region I Advisory Council, located in the geographical area of Boston, will hold a public meeting at 10:00 a.m., on Thursday, April 2, 1998, at the Boston District Office, Room 265, to discuss such matters as may be presented by members and staff of the U.S. Small Business Administration, or others present.

For further information, please write or call Ms. Mary E. McAleney, District

Director, U.S. Small Business Administration, 10 Causeway Street, Room 265, Boston, Massachusetts 02222-1093, telephone (617) 565-5560.

Eugene Carlson,

Associate Administrator, Office of Communications & Public Liaison.

[FR Doc. 98-6478 Filed 3-12-98; 8:45 am]

BILLING CODE 8025-01-M

SMALL BUSINESS ADMINISTRATION

Region IX—Honolulu District Advisory Council; Public Meeting

The Small Business Administration Region IX Honolulu District Advisory Council, located in the geographical area of Honolulu, Hawaii, will hold a public meeting at 10:00 a.m. on Wednesday, March 25, 1998, at the Business Information and Counseling Center, 1111 Bishop Street, Suite 204, Training Center, Honolulu, HI 96813, to discuss such matters as may be presented by members, staff of the Small Business Administration, or others present.

For further information, write or call Andrew K. Poepoe, District Director, U.S. Small Business Administration, 300 Ala Moana Boulevard, Room 2-235 Honolulu, Hawaii 96850, telephone (808) 541-2965.

Dated: March 6, 1998.

Eugene Carlson,

Associate Administrator, Office of Communications & Public Liaison.

[FR Doc. 98-6480 Filed 3-12-98; 8:45 am]

BILLING CODE 8025-01-M

OFFICE OF THE UNITED STATES TRADE REPRESENTATIVE

United States-Israel Free Trade Area Implementation Act Designation of Qualifying Industrial Zone

AGENCY: Office of the United States Trade Representative.

ACTION: Notice.

SUMMARY: Under the United States-Israel Free Trade Area Implementation Act (the "FTA Act"), products of qualifying industrial zones encompassing portions of Israel and Jordan or Israel and Egypt are eligible to receive duty-free treatment. Effective upon publication of this notice, the United States Trade Representative, pursuant to authority delegated by the President, is designating the Israeli-Jordanian Irbid Qualifying Industrial Zone as a qualifying industrial zone under the FTA Act.

FOR FURTHER INFORMATION CONTACT: